

Data Privacy Policy

Lumina Works processes the personal data of employees, applicants, and dependents in compliance with the Data Privacy Act of 2012 (RA 10173) and the issuances of the National Privacy Commission (NPC). This policy explains what we collect, why, how long we keep it, and the rights every employee has over their personal data.

Purpose and Scope

This policy applies to all personal data processed in the course of employment: from application to separation and through the retention periods below. It covers processing by HR, payroll, IT, and any third-party processor engaged by the company, in all formats, whether digital or paper.

Processing is limited to declared, specified, and legitimate purposes: administering employment, payroll, and benefits; meeting legal obligations to the BIR, SSS, PhilHealth, and Pag-IBIG; ensuring safety and security; and managing performance and discipline.

Data We Collect and Retention

The table below lists the categories of personal data we process and how long each is retained. When a retention period lapses, records are securely destroyed or anonymized.

Data Category	Examples	Retention Period
Recruitment records	Resumes, interview notes	1 year after decision
Employment records	Contracts, 201 file, evaluations	5 years after separation
Payroll records	Payslips, tax withholding, loans	10 years
Health data	Medical exams, HMO claims	5 years after separation
Access logs	Badge, VPN, and system logs	2 years

Retention periods may be extended when records are subject to a legal hold, an ongoing investigation, or a pending case, in which case the Data Protection Officer documents the basis for the extension.

Employee Rights

Under RA 10173 every employee has the right to be informed, to access, to correct, to object, to erasure or blocking, to damages, and to data portability. To exercise any of these rights, file a request with the Data Protection Officer; requests are acknowledged within three (3) working days and resolved within fifteen (15) working days. Exercising your privacy rights will never be held against you.

Handling Requirements

Employee personal data may only be accessed on a need-to-know basis tied to your role. Do not store colleague or applicant data on personal devices or personal cloud accounts. Spreadsheets containing personal data must be password-protected and shared only through company-approved storage. Paper records are kept in locked cabinets in the HR area. Third parties receive personal data only under a data sharing or outsourcing agreement reviewed by Legal.

Breach Reporting

If you suspect a personal data breach - a lost laptop, a misdirected email containing personal data, unauthorized access to an HR system - report it to the Data Protection Officer at dpo@luminaworks.example within twenty-four (24) hours of discovery. The DPO assesses the incident and, where required by the NPC rules, notifies the National Privacy Commission and affected individuals within seventy-two (72) hours of knowledge of the breach. Do not attempt to investigate or contain a breach on your own beyond disconnecting an affected device.

Data Protection Officer

The company's Data Protection Officer reports to the Chief Legal Officer and can be reached at dpo@luminaworks.example or local 4501. The DPO maintains the processing registry, runs the annual privacy training in the learning portal, and is the point of contact for the NPC.